

Attachment 1: Request for SDVOSB/VOSB Sole Source Justification Format IAW VAAR 819.7008/9

DEPARTMENT OF VETERANS AFFAIRS

Justification and Approval (J&A) For Other Than Full and Open Competition

Acquisition Plan Action ID: 36C259-25-AP-2413

1. Contracting Activity:

Department of Veterans Affairs
Network Contracting Office 19 (NCO 19)
6162 South Willow Drive, Suite 300
Greenwood Village, CO 80111

Organizational Activity:

Department of Veterans Affairs
Rocky Mountain Regional VA Medical Center
1700 N. Wheeling Street
Aurora, CO 80045

2237#: [REDACTED]

- 2. Nature and/or Description of the Action Being Approved:** The action being reviewed and approved is a sole source justification for a new emergency firm-fixed-price three (3) month bridge contract to a Service Disabled Veteran Owned Small Business (SDVOSB), A-Team Solutions LLC, for temporary staffing services for Sterile Processing Technicians required at the Rocky Mountain Regional VA Medical Center (RMR VAMC).

A-Team Solutions LLC was a Small Business Administration (SBA) verified SDVOSB vendor.

- 3. Description of Supplies/Services Required to Meet the Agency's Needs:** This requirement was for eight (8) temporary staffing services for Sterile Processing Technicians required for sterilization at the RMR VAMC for a 3-month period of performance. This requirement prevented a lap of service of Sterile Processing Technicians at RMR VAMC. Recently awarded staffing contract 36C25925N0256 with North American United Healthcare Services JV, LLC was not able to start work by established award effective date of March 15, 2025. This requirement was approved as an emergency acquisition by NCO 19. The total estimated amount for this requirement was [REDACTED]. The estimated delivery/start date was March 15, 2025.

- 4. Statutory Authority Permitting Other than Full and Open Competition:** 41 USC §3304(a)(5), 38 U.S. Code § 8127(c), as implemented by FAR 6.302-5 (Authorized or Required by Statute). COs may use the non-competitive (sole source) procedures authorized in VAAR 819.7008 (DEVIATION) or VAAR 819.7009 (DEVIATION) up to \$5,000,000. Check the specific VAAR clause used below:

(X) 819.7008 Sole source awards to a certified service-disabled veteran-owned small business; or
() 819.7009 Sole source awards to a certified veteran-owned small business

- 5. Demonstration that the Contractor's Unique Qualifications and/or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):** VAAR 819.7007 allows sole source awards to a SDVOSB based on 38 U.S.C. 8127(c). The SDVOSB concern, A-Team Solutions LLC, has been determined to be a responsible source with respect to performance. The SDVOSB meets the eligibility requirements outlined in VAAR 819.7003. Due to the urgent nature of

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this acquisition, an emergency procurement request was necessary to ensure the continuity of contracting personnel critical to patient care. Without this continuity, the department would have faced significant challenges in maintaining the surgical schedule, potentially resulting in unsafe medical conditions over an extended period. Awarding a bridge contract enabled the uninterrupted provision of patient care services by current contractors, which was at risk due to the impending transition in contractual arrangements.

6. **Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable, including whether a notice was or will be publicized as required by FAR Subpart 5.2 and, if not, which exception under FAR 5.202 applies:** A notice will be posted to Contract Opportunities.

7. **Determination by the CO that the Anticipated Cost to the Government will be Fair and Reasonable:** Price analysis was conducted by the Contracting Officer (CO) to ensure the price was fair and reasonable prior to award. The quoted price was compared to the IGCE as well as prices quoted on recent competitive acquisition and determined reasonable for award.

Description of the Market Research Conducted and the Results, or a Statement of the Reasons

Market Research Was Not Conducted: Market Research was conducted by searching the SBA Dynamic Small Business Search (DSBS) and the Federal Procurement Data System (FPDS). One (1) SDVOSB vendor and two (2) other Small Business vendors were identified from SBA DSBS, but none could meet the urgent start of March 15, 2025. A-Team Solutions LLC was identified as an SDVOSB capable of meeting this requirement and is the incumbent provider for the requirement.

8. **Any Other Facts Supporting the Use of Other than Full and Open Competition:** None. The sole source authority is under 38 USC 8127(c).
9. **Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:** The listed vendor is the only SDVOSB distributor for the requirement:

A-Team Solutions LLC
8115 Maple Lawn BLVD STE 350
Fulton, Maryland 20759

10. **A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required:** Actions are not being taken since this a sole source award authorized by 41 USC §3304(a)(5), 38 U.S. Code § 8127(c) and VAAR 819.7007. However, new long term requirement was solicited and awarded based on competition. Also, continuous market research will be conducted to fulfill future requirement needs.

11. **Requirements Certification:** I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

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[Redacted Signature]

Acquisition Utilization Specialist
RMR VAMC

12. Approvals in accordance with the VHAPM Part 806.3 OFOC SOP:

- a. **Contracting Officer or Designee's Certification (required)**: I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.

[Redacted Signature]

Contracting Officer
Supply/Service Denver, NCO 19

- b. **One Level Above the Contracting Officer (Required over the SAT but not exceeding \$750K)**: I certify the justification meets requirements for other than full and open competition.

[Redacted Signature]

Branch Chief
Supply/Service Denver, NCO 19